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Case Name: *Park Capital Management, LLC v. Satya Chillara, et al.*

Case No.: 22CV402044

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Park Capital Management, LLC (“Park Capital”) moves for summary judgment under Code of Civil Procedure Section 437c on the ground that there is no genuine material dispute of fact with respect to the fact that Orchard Yield Funds, LLC is, and always has been, the general partner of Orchard Yield Fund I LP. Notice of Motion (the “Motion”) at 1:24-2:1 (filed: Jan. 22, 2026).

The Motion came on for hearing on August 21, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Park Capital Management, LLC (“Plaintiff” or “Park Capital”), derivatively on behalf of Orchard Yield Fund I LP (“the Orchard Partnership”), brings this action against defendants Satya Chillara (“Chillara”), Rajs Funds LLC (“Rajs Funds”), and Sunil Dhar (“Dhar”) (collectively, “Defendants”). The Orchard Partnership is named as a nominal defendant.

This is a derivative action for declaratory relief. According to the allegations of the Complaint, on March 25, 2016, general partner Orchard Yield Funds LLC (“Orchard”) and limited partners Chillara, Dhar, and Park Capital (collectively, “Limited Partners”) entered into a limited partnership agreement (“LP Agreement”) to form the Orchard Partnership. (Complaint, ¶¶ 3, 4, 10, 11.) The Orchard Partnership was formed for the sole purpose of investing in Double L Ranches, LLC (“Double L”). (UMFs 1, 11.) Adam McAfee (“McAfee”) teamed up with Chillara to find investors for Double L, to invest via the Orchard Partnership. (UMF 3.) Thereafter, the LP Agreement was entered into.

The LP Agreement states that the only general partner at the time of formation was Orchard and that the general partner may be removed only “‘for cause’” when such cause is “‘reasonably determined in good faith upon the **unanimous** affirmative vote (called expressly for that purpose) of all the Limited Partners.’” (Complaint, ¶¶ 10, 12 [emphasis original].) On July 14, 2019, Chillara and Dhar called for a meeting to vote on the removal of Orchard as the general partner. (Complaint, ¶ 13.) Park Capital voted against the removal, but Chillara and Dhar purportedly rejected Park Capital’s vote. (Complaint, ¶ 14.) Park Capital contends that the vote to remove Orchard was invalid and emailed Chillara and Dhar to dispute the validity of the vote, and thus, there was no unanimous

affirmative vote by the Limited Partners to remove a general partner, and no vote or discussion on whether Orchard was properly removed for “cause.” (Complaint, ¶¶ 14-15.)

On July 20, 2019, Chillara and Dhar voted to add defendant Rajs Funds as general partner of the Orchard Partnership; however, such a vote required Orchard’s consent, and Park Capital objected to the vote, disputing the validity of the vote to admit Rajs Funds, since Orchard was prevented from voting. (Complaint, ¶¶ 16-17.) Since the votes above, there is uncertainty regarding the leadership of the Orchard Partnership. (Complaint, ¶ 18.) Park Capital believes Orchard is still the lone general partner, and Orchard has continued to: pay for all of the Orchard Partnership’s expenses; prepare all of its accounting records; prepare the work to complete its tax returns; timely filed the tax returns; and prepared and issued Form K-1s to all of its limited partners. (Complaint, ¶ 19.) Chillara and Dhar, however, have made repeated representations that Rajs Funds is the general partner of the Orchard Partnership. (Complaint, ¶ 20.)

Plaintiff initially filed its complaint on November 17, 2021 with the Superior Court of Alameda County. Thereafter, on July 13, 2022, Plaintiff filed the operative complaint against Chillara, Dhar and Rajs Funds, asserting a single cause of action for declaratory relief to determine who the Orchard Partnership’s general partner is.

On January 22, 2026, Plaintiff filed this Motion for summary judgment of the complaint that is currently before the Court. Defendants oppose the Motion and Plaintiff filed a reply.

I. Legal Standard

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its

consideration and deny the [moving party's] motion.” (*Id.* at p. 856.)¹

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted].)

II. Request for Judicial Notice

Plaintiff seeks judicial notice of the following documents:

- 1) Complaint filed with the Superior Court of Alameda on November 17, 2021, case no. 21CV002729 (Ex. 1);
- 2) Notice of transfer of civil matter filed with the Superior Court of Santa Clara County on August 23, 2022, case no. 22CV402044 (Ex. 2);
- 3) Articles of Organization of a Limited Liability Company for Double L Ranches, LLC filed with the CA Secretary of State on August 5, 2013. (Ex. 3);

Plaintiff’s request for judicial notice of Exhibits 1 and 2 is **GRANTED**. (Evid. Code, § 452, subd. (d).) The request for judicial notice of Exhibit 3 is likewise **GRANTED**. (Evid. Code, § 452, subd. (c).)

III. Declaratory Relief Generally

“Code of Civil Procedure section 1060, which governs actions for declaratory relief, provides: ‘Any person interested under a written instrument ... , or under a contract, or who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.’” (*California Public Records Research, Inc. v. County of Yolo* (2016) 4 Cal.App.5th 150, 185.)

¹ See also *Birdsall v. Helfet* (2025) 113 Cal.App.5th 558, 568 (“The court’s sole function on a motion for summary judgment is issue-finding, not issue-determination. The judge must simply determine from the evidence submitted whether there is a ‘triable issue as to any material fact.’”)